4. He/she must not have any interest in government contracts, works or services.

5. He/she must not be a director or managing agent nor hold an office of profit in a corporation in which the government has at least 25 per cent share.

6. He/she must not have been dismissed from government service for corruption or disloyalty to the State.

7. He/she must not have been convicted for promoting enmity between different groups or for the offence of bribery.

8. He/she must not have been punished for preaching and practising social crimes such as untouchability, dowry and sati.

On the question whether a member is subject to any of the above disqualifications, the President's decision is final. However, he/she should obtain the opinion of the election commission and act accordingly.

Disqualification on Ground of Defection The Constitution also lays down that a person shall be disqualified from being a member of Parliament if he/she is so disqualified on the ground of defection under the provisions of the Tenth Schedule. A member incurs disqualification under the defection law:

1. if he/she voluntarily gives up the membership of the political party on whose ticket he/she is elected to the House;

2. if he/she votes or abstains from voting in the House contrary to any direction given by his/her political party;

3. if any independently elected member joins any political party; and

4. if any nominated member joins any political party after the expiry of six months.

The question of disqualification under the Tenth Schedule is decided by the Chairman in the case of Rajya Sabha and Speaker in the case of Lok Sabha (and not by the President of India). In *Kihoto Hollohan* case[7] (1992), the Supreme Court ruled that the decision of the Chairman/Speaker in this regard is subject to judicial review.

 **Vacating of Seats**

In the following cases, a member of Parliament vacates his/her seat.

1. Double Membership A person cannot be a member of both Houses of Parliament at the same time. Thus, the Representation of People Act (1951) provides for the following:

(a) If a person is elected to both the Houses of Parliament, he/she must intimate within 10 days in which House he/she desires to serve. In default of such intimation, his/her seat in the Rajya Sabha becomes vacant.

(b) If a sitting member of one House is also elected to the other House, his/her seat in the first House becomes vacant.